

26VECV02585 26VECV02585

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26VECV02585 Alipanahi v Hyundai

[TENTATIVE] ORDER: Defendant Hyundai Motor America's Motion to Compel Arbitration and Stay the Action are DENIED as to the request based on the "Owner's Handbook" as there is no evidence that plaintiff received the "Owner's Handbook," and GRANTED so that the arbitrator can resolve the issues of enforceability and scope within the arbitration agreement found in the "Connected Service Agreement Terms and Conditions".

Defendant Hyundai Motor America's Request for Judicial Notice is GRANTED but not as to any hearsay or facts in dispute.

If the arbitrator determines that the arbitration is enforceable and the case will proceed in arbitration, the court will issue a stay pending the arbitration. If the arbitrator determines that the Connected Service agreement arbitration provision is not applicable or not enforceable, then the case will return to the Civil Active list and trial scheduled in court.

ARBITRATION REVIEW CONFERENCE SET MAY 20, 2027 AT 8:30 A.M. PLAINTIFF'S COUNSEL TO FILE REPORT PRIOR TO THAT DATE.

Introduction

Defendant Hyundai Motor America (Defendant) moved to compel Plaintiff Babak B. Alipanahi (Plaintiff) to arbitrate the claims alleged in the Complaint and to stay the prosecution of this case. (9 U.S.C. sec. 1 et seq. and Code Civ. Proc. sec. 1280 et seq.)

Discussion

Whether determined under federal or state law, Defendant has the initial burden to show the existence of an arbitration agreement. Defendant can meet its initial burden to show the existence of an arbitration agreement by submitting a copy of the arbitration agreement or by stating the arbitration agreement verbatim. (Cal. Rules of Court, rule 3.1330; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058; *Brennan v. Opus Bank*, 796 F.3d 1125, 1130 (9th Cir. 2015).) Evidentiary validity, at this point, is not at issue. (Id.) Defendant moved to compel arbitration based upon the arbitration provisions found in the "2021 Owner's Handbook & Warranty Information" (Handbook or New Vehicle Limited Warranty (NVLW)) (Anthony Goel Decl., par. 7, Exh. E) and the "Connected Service Agreement Terms and Conditions" (CSA or Bluelink Agreement) (Vijay Rao Decl. pars. 5-7, 18-19, Exhs. A-B).

Defendant's initial burden is to only show the existence of an arbitration agreement and evidentiary validity is not at issue unless Plaintiff presents facts/evidence to dispute authentication. Defendant's submission of the arbitration provision in the Handbook is proper to meet their initial burden. However, Plaintiff presented facts/evidence to dispute authentication. Plaintiff testified that he was never made aware of any arbitration agreement in the Handbook/Vehicle Limited Warranty Agreement when he lease the vehicle on February 27, 2021, and the only discussion about the warranty involved the coverage provided for the vehicle's battery. (Plaintiff's Decl. pars. 3-4.) Based upon Plaintiff's declaration, Plaintiff met his burden to dispute authentication and the burden shifted back to Defendant to present evidence to authenticate. Defendant's evidence did not present evidence to authenticate. The declaration of Anthony Goel only provided evidence that, in general, that all vehicles sold in California included a copy of the Handbook in the glovebox. (Goel Decl. par. 5.) Goel's testimony failed to provide evidence specifically to authenticate the events surrounding Plaintiff's vehicle lease. Because Defendant could not authenticate the Handbook, specifically as to Plaintiff, Defendant failed to meet their burden to show the existence of an arbitration agreement through the Handbook. On this defect, the motion to compel based upon the Handbook's arbitration agreement is denied.

Even if the Court were to consider the substance of Defendant's Handbook argument, the arbitration provision is not seen as a contract because there is no signature from Plaintiffs showing consent to the arbitration provision. Without any facts to show consent/entry to the arbitration provision, there are insufficient facts to show the existence of an arbitration agreement via the Handbook.

Defendant argued that Plaintiffs should be equitably estopped from disputing the arbitration agreements and/or opposing the motion. Equitable estoppel is a doctrine that acts defensively and operates to prevent one from taking an unfair advantage of another and not to give an unfair advantage to one seeking to invoke the doctrine. (Mathews v. Happy Valley Conference Center (2019) 43 Cal.App.5th 236, 259.) Defendant is attempting to use the doctrine offensively to prevent Plaintiffs from defending/opposing against Defendant's request for arbitration. Because Defendant is misapplying equitable estoppel in this motion, Defendant's argument as to equitable estoppel is unpersuasive.

Even if equitable estoppel could be applied, equitable estoppel requires four elements: "(1) the party to be estopped [Plaintiff] must be apprised of the facts; (2) he [Plaintiff] must intend that his conduct shall be acted upon, or must so act that the party asserting the estoppel [Defendant] has a right to believe it was so intended; (3) the other party [Defendant] must be ignorant of the true state of facts; and (4) he [Defendant] must rely upon the conduct to his injury." (Mathews, supra, 43 Cal.App.5th at p. 258.) The facts showed that Plaintiff was not "apprised of the facts". The evidence submitted by Plaintiff showed that Plaintiff had no knowledge of the existence of the arbitration provision in the Handbook when Plaintiff leased the vehicle. Further, Defendant failed to present any facts to show that Plaintiff intended Defendant to act upon Plaintiff's alleged agreement to arbitrate. Further, it can be inferred that Defendant knew of the arbitration agreement and/or the Handbook since Defendant is the party issuing/drafting the Handbook. Defendant fails to present any facts/evidence to support their contention that Plaintiff should be equitable estopped from denying arbitration. Defendant's argument as to equitable estoppel is unpersuasive.

Because Defendant's argument as to the arbitration agreement in the Handbook are not persuasive, Plaintiff's opposing argument as to unconscionability of the terms in the Handbook are moot.

The motion to compel arbitration based upon the arbitration agreement in the Handbook is DENIED.

Defendant argued that the arbitration agreement in the Bluelink Agreement can be grounds to compel arbitration. Defendant provided testimony to show that Plaintiff entered the Bluelink Agreement on February 28, 2021, the day after the lease transaction was completed. (Rao Decl. pars. 7, 19, and Exh. A.) With these facts, Defendant met their initial burden to show the existence of an arbitration agreement. The burden shifted to Plaintiff to dispute the arbitration agreement in the Bluelink Agreement. Plaintiff's opposition failed to present any argument regarding the Bluelink Agreement and Plaintiff's declaration made no reference to the February 28, 2021, entry in the Bluelink Agreement. As it stands, Defendant sufficiently showed that the arbitration agreement in the Bluelink Agreement is enforceable.

However, Defendant further argued that the arbitration agreement in the Bluelink Agreement contains a delegation clause, wherein enforceability and scope of the arbitration agreement is delegated to the arbitrator and is not to be decided by the

court. Courts must defer “questions of arbitrability” to the arbitrator where the parties have “clearly and unmistakably” agreed that the arbitrator decide those issues. (Rent-A-Center, West, Inc. v. Jackson (2010) 561 U.S. 63, 69-70 & fn. 1; Aanderud v. Superior Court (2017) 13 Cal.App.5th 880, 893.) “Just as the arbitrability of the merits of a dispute depends upon whether the parties agreed to arbitrate that dispute, ... so the question ‘who has the primary power to decide arbitrability’ turns upon what the parties agreed about that matter.” (First Options of Chicago Inc. v. Kaplan (1995) 514 U.S. 938, 943.) The delegation clause in the Bluelink Agreement states: “[a]ll issues are for the arbitrator to decide, including the scope and enforceability of this arbitration provision as well as the Agreement’s other terms and conditions, and the arbitrator shall have exclusive authority to resolve any such dispute relating to the scope and enforceability of this arbitration provision or any other term of this Agreement including, but not limited to any claim that all or any part of this arbitration provision or Agreement is void or voidable.” (Rao Decl., Ex. B, pg. 10, par. 15.C(c).) The delegation clause is clear and unmistakable. Plaintiff failed to address these contentions as to the Bluelink Agreement and/or the delegation clause. Because the arbitration agreement in the Bluelink Agreement is enforceable and it contains a delegation clause specifically as to the arbitration agreement enforceability and scope, the Court finds the arguments related to the Bluelink Agreement to be persuasive.

The motion to compel arbitration and stay the action is GRANTED in so far as the parties are to have the arbitrator determine enforceability and scope of the arbitration agreement.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.